

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF SLIVIN AND OTHERS v. RUSSIA

(Applications nos. 24722/18 and 10 others –
see appended list)

JUDGMENT

STRASBOURG

28 March 2024

This judgment is final but it may be subject to editorial revision.



In the case of Slivin and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Branko Lubarda*, President*,
Armen Harutyunyan,
Ana Maria Guerra Martins*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 7 March 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the

proceedings under the Code of Administrative Offences (the CAO); and *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, concerning administrative convictions for making calls to participate in public events.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraph 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to the facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 28 March 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Branko Lubarda
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	24722/18 14/05/2018	**Igor Yevgenyevich SLIVIN** 1990		Distribution of leaflets in support of A. Navalnyy Tambov 02/08/2017 Distribution of leaflets in support of A. Navalnyy Tambov 16/09/2017	Article 20.2 § 8 of CAO Article 20.2 § 8 of CAO	detention for 20 days fine of RUB 300,000	Tambov Regional Court 14/11/2017 Tambov Regional Court 22/11/2017	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report (i) on 05/10/2017, (ii) on 02/11/2017, and (iii) on 07/09/2018, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - three sets of administrative proceedings, Art. 10 (1) - conviction for making calls to participate in public events - rally to support A. Navalnyy on 29/10/2017 in Tambov, Article 20.2 § 8 of CAO, detention for 25 days, final decision by the Tambov Regional Court on 10/09/2018.	5,000
2.	40138/18 14/08/2018	**Leonid Vladimirovich SANKIN** 1963	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of presidential candidacy of A. Navalnyy Teatralnaya square, Rostov-on-Don 24/12/2017	Article 20.2 § 8 of CAO	fine of RUB 75,000	Rostov Regional Court 20/02/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	46388/18 21/09/2018	**Valeriya Ibragimovna DZBOYEVA** 1998	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of presidential candidacy of A. Navalnyy Rostov-on-Don 24/12/2017	Article 20.2 § 6-1 of CAO	fine of RUB 7,500	Rostov Regional Court 22/03/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
4.	50049/18 10/10/2018	**Pavel Yuryevich SMIRNOV** 1991	Zhdanov Ivan Yuryevich Vilnius	Manifestation against Putin's re-election as the President Voronezh 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 14/06/2018	Art. 6 (1) - lack of impartiality of tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
5.	8678/19 21/01/2019	**Ivan Andreyevich TUMANOV** 1999	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Pokrov 05/04/2021 Opposition rally against Putin's re-election Vladimir 05/05/2018	article 20.2.2 § 3 of CAO article 20.2 § 5 of CAO	detention for 11 days fine of RUB 5,000	Vladimir Regional Court 29/04/2021 Vladimir Regional Court 11/09/2018	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report on 19/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of administrative proceedings.	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
6.	40190/21 21/07/2021	**Ivan Aleksandrovich KHUDYAKOV** 1989	Lepekhin Andrey Gennadyevich Chelyabinsk	Rally "Free Navalnyy" Chelyabinsk 23/01/2021	article 19.3 § 1 of CAO	detention for 30 days	Chelyabinsk Regional Court 26/01/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.05 p.m. on 23/01/2021 until 1.00 p.m. on 24/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
7.	41534/21 03/08/2021	**Andrey Leonidovich FATEYEV** 1988	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Tomsk 23/01/2021 Rally "Free Navalnyy" Tomsk 31/01/2021	article 20.2 § 2 of CAO article 20.2 § 1 of CAO	fine of RUB 25,000 fine of RUB 20,000	Tomsk Regional Court 12/02/2021 Tomsk Regional Court 12/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - three sets administrative proceedings, Art. 10 (1) - conviction for making calls to participate in public events - rally to support A. Navalnyy on 21/04/2021 in Tomsk, Article 20.2 § 8 of CAO, detention for 30 days, final decision by the Tomsk Regional Court on 04/05/2021	5,000
8.	43776/21 26/08/2021	**Denis Freddiyevich KADENA** 1998	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.22 p.m. on 02/02/2021 until 7.04 a.m. on 03/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
9.	51184/21 08/10/2021	**Konstantin Mikhaylovich YUDIN** 1995	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Moscow 23/01/2021 Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 15,000 fine of RUB 10,000	Moscow City Court 17/11/2021 Moscow City Court 14/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record (i) between 1.45 p.m. and 11.50 p.m. on 23/01/2021; and (ii) between 7.46 p.m. and 11.44 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of administrative proceedings.	4,000
10.	58077/21 09/11/2021	**Yuliya Borisovna SMIRNOVA** 1990	Kulikov Sergey Sergeyevich Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 27/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record: (i) between 12.25 p.m. and 7.28 p.m. on 31/01/2021; (ii) between 5:42 p.m. on 24/02/2022 and 2:30 p.m. on 25/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of administrative proceedings, Art. 10 (1) - disproportionate measures against solo demonstrators - Nizhniy Novgorod, 24/02/2022, anti-war solo demonstration, fine of RUB 80,000, final decision by the Nizhniy Novgorod Regional Court on 13/04/2022.	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
11.	34101/22 01/07/2022	**Kirill Aleksandrovich SUKHORUKOV** 1999	Zhdanov Ivan Yuryevich Vilnius	Anti-war protest Kaliningrad 24/02/2022	article 20.2 § 8 of CAO	detention for 10 days	Kaliningrad Regional Court 05/03/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report: (i) from 7.00 p.m. on 24/02/2022 until 4.15 p.m. on 25/02/2022; and (ii) from 3.40 p.m. on 08/03/2022 until 3.40 p.m. on 09/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of administrative proceedings, Art. 10 (1) - disproportionate measures against solo demonstrators - picket against war in Ukraine held on 08/03/2022, conviction under article 20.3.3 § 1 of CAO, fine of RUB 30,000, final decision on 31/05/2022 by the Kaliningrad Regional Court.	5,000

[1] Plus any tax that may be chargeable to the applicants.